THE CITY OF NEW YORK
MANHATTAN COMMUNITY BOARD 3
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Arnette Scott, Board Chair Susan Stetzer, District Manager

October 2026 Vote Sheet

Executive Committee
no votes necessary

Health, Seniors, & Human Services / Youth, Education, & Human Rights Committee

1. Approval of previous month's minutes
   approved by committee
2. FY28 District Needs Statement and Budget Priorities
   VOTE: To approve the FY'28 District Needs Statement and Budget Priorities
3. CB 3 position on street homelessness crisis
   VOTE: TITLE: Position on street homelessness crisis

WHEREAS, Community Board 3, M, has seen a substantial increase in the number of unhoused people in the District, which mirrors the citywide condition. This increase in the number of street homeless has been acknowledged by DHS as well as providers serving the unhoused, and confirmed by the 2026 Hope Count which was the highest count in the history of the count, and

WHEREAS, this increase of people living on the street, some of whom are suffering from behavioral illness or substance abuse, or combinations of two or three of these conditions, has generated a backlash of calls and complaints to the community board as well as to 311 for both concern for the homeless as well as impacts on community and businesses, and

WHEREAS, DHS uses the HOPE count, quarterly reports on how many people outreach teams referred to placement into permanent housing, transitional housing, or other settings; and the average number of clients in low-barrier beds to track the number of those who are unhoused. According to State Comptroller DiNapoli's report[1], people placed into permanent or transitional housing has increased by more than 400% from FY 2017 to 10,841 in FY 2025. The population in low barrier shelters averaged 2,100 a month in FY 2022 and grew to just over 3,000 a month in the first quarter of FY 2026. These indicators show that despite increased referrals to various kinds of housing, the number of unhoused has increased, and

WHEREAS, Comptroller DiNapoli's report notes that while tracking the number of placements is useful, the public data does not differentiate between placement in permanent vs. transitional housing, and it does not follow up to record how long an individual stayed after placement. This additional data would help give a clearer picture of outcomes and their success, which would allow for better planning. Additionally, DHS does not formally track why people refuse shelter, which could allow for better planning for people to accept shelter, and

WHEREAS, while DHS reports overall bed capacity in the system, there is a shortage of single or double rooms, low-barrier beds (safe havens/stabilization), and beds in specific neighborhoods where people want to remain. People may wait for specific types of beds, especially safe havens and smaller or non-congregate spaces, which is a barrier to having people accept placements and contributes to people remaining on the streets, and

WHEREAS, the lack of success in serving the homeless in some areas have led to multiple taskforces and "hubs," such as at Washington Square Park, Penn Station, 125th Street, and others. The structures vary widely—some focusing on individuals and specific needs (using individual-level planning), others in harassing and over-engaging (enforcement-focused) until people move to other areas. Coordination is uneven and opaque across neighborhoods. Successful models are not standardized nor replicated, and these various models appear to be randomly decided by those leading each taskforce, and

1 *DiNapoli Report Analyzes Increases in NYC's Unsheltered Population and Spending https://www.osc.ny.gov/press/releases/2026/03/dinapoli-report-analyzes-increases-nycs-unsheltered-population-and-spending*

WHEREAS, there is duplication of outreach efforts—those by MOC and those by other providers. For each provider, an entire system is set up, creating silos of efforts and inefficiencies, and

WHEREAS, our residents who are street homeless, who have mental health and / or substance abuse challenges, are our most vulnerable residents. The City is not serving these people adequately. Additionally, we hear from residents, BIDs, nonprofits and other organizations that unhoused people are impacting communities and small businesses. This sometimes results in conditions and incidents causing people to feel unsafe as well as concern regarding inhumane conditions for those who are unhoused, and

WHEREAS, the Mayor's Management Report (MMR), states that DHS has one overarching service goal specific to the unsheltered: "Reduce the number of unsheltered individuals." Part of the City's approach is to undertake constant outreach to those who remain unsheltered (on the street, in the subways or encampments), provide enhanced wraparound services to those who may be resistant to accepting traditional services, and

WHEREAS, at the September 2026 Budget Consultation meeting, DHS stated that agency coordination is addressed at City Hall level, including "top 50" frequent-utilizer lists and cross-agency discussions, but this does not address the many people resistant to services in many districts. DHS also reported that capacity constraints make it hard to manage full task forces in every hotspot, but did not address the other issues noted regarding the various taskforces. DHS's high staff vacancy rate of 17% does not allow for most efficient work by the agency, and

WHEREAS, DHS is committed to serving the homeless with caring and compassion, the mission of reducing the number of unsheltered individuals is not successful, and

WHEREAS, DHS at the September 2026 budget consultation announced a forthcoming citywide homelessness plan with a strong focus on unsheltered homelessness, but there has not been any information to community board, any acknowledgement that current service is inadequate, there is no timeline for stakeholder and community-board engagement in that plan. There has not been any information regarding task forces and hubs, and a general lack of transparency and collaboration, so

THEREFORE BE IT RESOLVED that Community Board 3 calls upon DHS to review current practices and results and propose a plan and a timeline that will adequately serve unhoused people in a manner that will remove barriers to shelter, including those who are resistant to services. Outreach should be conducted in a humane manner that will lead to housing. The planning should include collaboration with community boards along with others at the table in a community-based planning process to include those with expertise and vested concern in the community.

4. CAB/CEC reports
   no vote necessary
5. Future Agenda Planning
   no vote necessary
6. Vote to Adjourn
   approved by committee

40 YES 0 NO 0 ABS 0 PNV MOTION PASSED

<u>SLA Licensing & Outdoor Dining Committee</u>

1. Approval of previous month's minutes
   approved by committee

<u>Alterations</u>

2. Wonderland Bar (Feichangchenggong Inc), 96 2nd Ave
   withdrawn
3. 100 Feast and Lounge (Royal Century Banquet Inc), 100 E Broadway (Unit C2) (op/method of operation: extend 2nd floor hours from 10am-12am to 10am-2am all days and 3rd floor hours from 10am-11pm to 10am-2am all days) (restaurant)
   VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To—Stipulations Attached

WHEREAS, Royal Century Banquet, Inc., doing business as "100 Feast and Lounge", is seeking a change in the method of operation (extension of hours), in the premises located at 100 E Broadway, Unit C2, between Pike and Forsyth Streets, New York, New York; and

WHEREAS, this is an application for an establishment with up to 404 people (total), 22 tables and 263 seats, including seats at standup bars, full kitchen and food preparation area serving food during all hours of operation, one (1) television, live music on the second floor during special events, and small speakers playing background music; and

WHEREAS, there are three (3) full on-premises liquor licenses within 500 feet per the SLA LAMP map; and

WHEREAS, location currently has an on-premises license; and

WHEREAS, applicant has owned and operated this establishment at its currently location with an on-premises license since mid-2024; and

WHEREAS, 75 residents who live within two blocks of the location signed a petition in favor of the application; and

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a change in the method of operation (extension of hours) for Royal Century Banquet, Inc., for the premises located at 100 E Broadway, Unit C2, New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a wedding/banquet hall serving Cantonese/Japanese food, with a full kitchen and food preparation area serving food during all hours of operation,
2) its hours of operation will be opening no later than 10am (all days) and closing by 2AM (indoor spaces, all days) and 10pm (outdoor space, all days),
3) it will close all outdoor dining allowed under the temporary Open Restaurants program and any other outdoor uses by 10:00 P.M. all days and not have any speakers or TV monitors,
4) it will close any front or rear facade doors and windows at 10:00 P.M. every night or when amplified sound is playing, including but not limited to DJs, live music and live non-musical performances, or during unamplified live performances or televised sports,
5) it will play live music at entertainment level on the second floor during special events, but no DJs, promoted events, scheduled performances, or any event at which a cover fee will be charged,
6) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
7) it will not host pub crawls or party buses,
8) it will not have unlimited drink specials, including boozy brunches, with food,
9) it will not have "happy hours,"
10) it will ensure that there are no wait lines outside and will designate an employee for ensuring no loitering, noise or crowds outside,
11) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
12) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints.

4. B Side (Flam Able LLC), 113 Ave C (op/method of operation: amend hours to closing at 4am 7 days a week)

withdrawn

<u>New Liquor License Applicants</u>

5. Three Cherries Hospitality LLC, 15 1st Ave (op) (tavern)

VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To—Stipulations Attached

WHEREAS, Three Cherries INC doing business as Three Cherries, is seeking a sale of assets of a full on-premises liquor license, in the premises located at 15 1st Avenue, between 1st and 2nd Streets, New York, New York; and

WHEREAS, this is an application for an establishment with of 74 people, 9 tables and 36) seats with a 16 seat 20'-10" x 7'-2" customer bar located in the front of the premises, less than a full kitchen serving food at all hours, serving food during all hours of operation 8 TVs showing sports, streamed background music; and

WHEREAS, there are 37 full on-premises liquor licenses within 500 feet per the SLA LAMP map; and

WHEREAS, this location has been licensed as La Linea Place since 199; and

WHEREAS, the three partners have all worked in various aspects of the Hospitality industry for over 30 years, and

WHEREAS, there were 8 commercial 311 complaints at this location with NYPD action necessary since 2018; and

WHEREAS, we received a letter from all residents of 17 1st Ave, next door, in opposition to this application because of the oversaturation of bars on this block, the late hours, the noise from the existing establishment, crowds on the street and other issues with the existing nightlife establishments on this block; and

WHEREAS, 17 residents who live within two blocks of the location signed a petition in favor of the application; and

WHEREAS, although this location is in a saturated area and there are several licensed establishments on this block, this is a sale of assets from an existing business that does not have any stipulations. This applicant is agreeing to sign stipulations, install soundproofing, close the windows and work with the neighbors to alleviate the existing issues they are experiencing, thereby attempting to decrease the impact on the surrounding residents; and

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a full on-premises liquor license for Three Cherries Inc, for the premises located at 15 1st Ave, New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a Tavern, with Less than a full kitchen serving food all hours,
2) its hours of operation will be opening no later than 3:00 P.M. and closing by 4:00 A.M. ALL DAYS
3) it will not use outdoor space for commercial use,
4) It will employe security every night,
5) It will install soundproofing to ensure sound is not audible in nearby apartments,
6) it will close any front or rear facade doors and windows at 10:00 P.M. every night or when amplified sound is playing, including but not limited to DJs, live music and live non-musical performances, or during unamplified live performances or televised sports,
7) it will play ambient background music only, consisting of recorded music, and will not have live music, DJs, promoted events, scheduled performances or any event at which a cover fee will be charged,
8) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
9) it will not host pub crawls or party buses,
10) it will not have unlimited drink specials, including boozy brunches, with food,
11) it may have "happy hours" until 7:00 P.M. each night
12) it will ensure that there are no wait lines outside and will designate an employee for ensuring no loitering, noise or crowds outside,
13) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
14) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints.

6. Kera NYC Inc, 95 2nd Ave (wb) (restaurant)

VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To—Stipulations Attached

WHEREAS, Kera NYC Inc. doing business as Kera, is seeking Restaurant Beer and wine license, in the premises located at 95 2nd Ave, between 5th and 6th Streets, New York, New York; and

WHEREAS, this is an application for an establishment with of seventy-four (74) people, nineteen (19) tables and thirty-eight (38) seats with one 20.5 foot L-shaped bar with ten (10) stools, a full kitchen serving Georgian cuisine during all operating hours, one television and background recorded music only played at conversation level; and

WHEREAS, there are twenty-six (26) full on-premises liquor licenses within 500 feet per the SLA LAMP map;

WHEREAS, this location was previously with a Beer and wine license, prior to that it had a full liquor license; and

WHEREAS, the applicant has worked in the hospitality industry for over 20 years, and has worked in several restaurants in Brooklyn for the past four years; and

WHEREAS, twenty-two (22) residents who live within two blocks of the location signed a petition in favor of the application; and

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a Beerm, Wine, and Cider license for Kera NYC Inc., for the premises located at 95 2nd Ave, New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a full service restaurant, serving Georgian cuisine food during all hours of operation,
2) its hours of operation will be opening no later than 11AM and closing by 12AM Sunday-Wednesday and opening 11AM and closing by 2AM Thursday-Saturday,
3) it will close all outdoor dining allowed under the temporary Open Restaurants program and any other outdoor uses by 10:00 P.M. all days and not have any speakers or TV monitors,
4) it will close any front or rear facade doors and windows at 10:00 P.M. every night or when amplified sound is playing, including but not limited to DJs, live music and live non-musical performances, or during unamplified live performances or televised sports,
5) it will play ambient background music only, consisting of recorded music, and will not have live music, DJs, third party promoted events, cover charges, scheduled performances, and not more that 6 private parties per year,
6) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
7) it will not host pub crawls or party buses,
8) it will not have unlimited drink specials, including boozy brunches, with food,
9) it may have "happy hours" until 5P.M. each night,
10) it will ensure that there are no wait lines outside,
11) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
12) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints.

7. Occhiolino 11 LLC, 106 Norfolk St (Storefront 2) (op) (restaurant)

VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To—Stipulations Attached

WHEREAS, Occhiolino 11 LLC doing business as Occhiolino is seeking a sale of assets of a full on-premises liquor license, in the premises located at 106 Norfolk Street between Delancey and Rivington Streets, New York, New York; and

WHEREAS, this is an application for an establishment with of 74 people, 9 tables and 18 seats with a 13 foot bar with 10 seats, with a full kitchen serving food all hours of operations, no televisions and background music from small speakers; and

WHEREAS, there are 23 full on-premises liquor licenses within 500 feet per the SLA LAMP map;

WHEREAS, this location was previously licensed with a full liquor license to La Contenta II, since 2019; and

WHEREAS, the applicant has worked in various restaurants both in Italy and here in New York but has never been a license holder; and

WHEREAS, there were 9 commercial 311 complaints at this location with NYPD action necessary since 2020; and

WHEREAS, 68 residents who live within two blocks of the location signed a petition in favor of the application; and

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a full on-premises liquor license for Occhiolino 11 LLC, for the premises located at 106 Norfolk Street, New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a full service Italian Restaurant, with kitchen open and serving food all hours,
2) its hours of operation will be opening no later than 10AM -12AM Monday – Wednesday, 10AM -2AM Thursday – Saturday, and 10AM – 11PM Sunday,
3) it will close all outdoor dining allowed under the temporary Open Restaurants program and any other outdoor uses by 10:00 P.M. all days and not have any speakers or TV monitors,
4) it will close any front or rear facade doors and windows at 10:00 P.M. every night or when amplified sound is playing, including but not limited to DJs, live music and live non-musical performances, or during unamplified live performances or televised sports
5) it will play ambient background music only, consisting of recorded music, and will not have live music DJs, promoted events, scheduled performances, dancing, or any event at which a cover fee will be charged,
6) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
7) it will not host pub crawls or party buses,
8) it will not have unlimited drink specials, including boozy brunches, with food,
9) it may have "happy hours" until 7PM each night]
10) it will ensure that there are no wait lines outside [and will designate an employee for ensuring no loitering, noise or crowds outside],
11) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
12) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints.

8. Kyiv Club (Odffu Inc) 136 2nd Ave (aka 43 St Marks Pl) (op) (club, members only)
withdrawn
9. SLBurger12 LLC, 141 2nd Ave (wb) (bar/tavern)
withdrawn
10. Slow Dials (Hartburn LLC), 188 E 2nd St (wb) (bar/tavern)

VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To— Stipulations Attached

WHEREAS, Hartburn LLC doing business as Slow Dials, is seeking a beer wine and cider license, in the premises located at 188 East 2nd Street, between Ave A and B, New York, New York; and

WHEREAS, this is an application for an establishment with of 50 people, 7 tables and 50 seats with No Bar, Prep area serving limited café menu, serving food during all hours of operation; and

WHEREAS, there are 44 full on-premises liquor licenses within 500 feet per the SLA LAMP map; and

WHEREAS, this location wa**s** previously unlicensed; and

WHEREAS, the applicant has no history in the industry; and

WHEREAS, 11 residents who live within two blocks of the location signed a petition in favor of the application; and

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for Beer wine, and cider license for Hartburn LLC, for the premises located at 188 2nd Street, New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a Bar and Cafe, with Food prep area serving food at all hours,
2) its hours of operation will be opening no later than 11:00 .A.M. and closing by 9:00 P.M.

Wednesday-Monday,

3) it will not use outdoor space for commercial use
4) it will have a closed fixed façade with no open doors or windows except my entrance door will close by 10:00 P.M. or when amplified sound is playing, including but not limited to DJs, live music and live nonmusical performances, or during unamplified live performances or televised sports,
5) it will play ambient background music only, consisting of recorded music, and will not have live music, DJs, promoted events, scheduled performances or any event at which a cover fee will be charged, not more than 2 private events per month,
6) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
7) it will not host pub crawls or party buses,
8) it will not have unlimited drink specials, including boozy brunches, with food,
9) it will not have "happy hours,"
10) it will not have wait lines, and will designate an employee for ensuring no loitering, noise or crowds outside,
11) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
12) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints.

11. The Kankan House (189 Restaurant LLC), 189 E 3rd St (op) (restaurant)

VOTE: TITLE: Community Board 3 Recommendation To Deny due to refusal to sign the Stipulations

WHEREAS, 189 Restaurant LLC doing business as The Konkan House, is seeking a full on-premises liquor license, in the premises located at 189 East Third Street between Ave A and Ave, New York, New York; and

WHEREAS, this is an application for an establishment with of seventy-four (74) people, ten (10) tables and twenty-seven (27) seats with a full kitchen serving coastal Indian food during all hours of operation, one 12.7 ft bar with twelve (12) stools, playing ambient, background recorded music only, no TV's; and

WHEREAS, there are twenty (20) full on-premises liquor licenses within 500 feet per the SLA LAMP map; and

WHEREAS, this location has been vacant for the previous ten years; and

WHEREAS, prior to the City of Yes Zoning changes a vacant nonconforming use in a residential district should have reverted back to residential zoning after 2 years, the District Manager has reached out to the Department of Buildings and is waiting for an answer regarding the zoning for this specific location; and

WHEREAS, the applicant has never previously been a license holder or managed a similar business, but has worked as a manager of Electric Lemon Restaurant in the Equinox hotel in Hudson Yards for six years, prior to that he was the chef as t several Indian restaurants; and

WHEREAS, We received 8 email in opposition to this item due to the locations problematic history, several of the previous businesses at this location caused problem for years, it is on a residential side street and because it has been vacant for so long, this building is an old tenement building and the sound from the ground floor space disturbed the entire building, it is very difficult to soundproof, nose on the street from customer, noise from the HVAC equipment on the roof, increased rodents due to increased trash from the restaurant, and the inexperience of the operator with a similar establishment; and

WHEREAS, four people including a representative from the East Village Community Coalition and the resident that lives directly above this establishment spoke in opposition to this item due to the same concerns,

WHEREAS, seventy (70) residents who live within two blocks of the location signed a petition in favor of the application; and

WHEREAS, due to the many concerns raised by the residents, and the fact that any licensed establishment in this location will increase the negative impact on the neighborhood and

nearby residents, the committee would not support a full liquor license but would recommend approval of a Beer, Wine, and Cider license with early hours at this location,

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a Beer, Wine, and Cider license for 189 Restaurant LLC, for the premises located at 189 East Third Stret, New York, New York, because the applicant did not agree to the following stipulations that:

1) it will operate as a restaurant serving coastal Indian cuisine during all hours of operation,
2) its hours of operation will be opening no later than 5PM and closing by 11PM Sunday-Wednesday and opening no later than 5PM and closing by12AM Thursday-Saturday,
3) it will not use outdoor space for commercial use,
4) it will install soundproofing to ensure sound is not audible in neighboring apartments,
5) it will close any front or rear facade doors and windows at 10:00 P.M. every night or when amplified sound is playing, including but not limited to DJs, live music and live non-musical performances, or during unamplified live performances or televised sports,
6) it will play ambient background music only, consisting of recorded music, and will not have live music, DJs, third party promoted events, cover charges, scheduled performances, or more than 36 private parties per year,
7) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
8) it will not host pub crawls or party buses,
9) it will not have unlimited drink specials, including boozy brunches, with food,
10) it will not have "happy hours,"
11) it will ensure that there are no wait lines outside and will designate an employee for ensuring no loitering, noise or crowds outside,
12) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
13) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints
14) it will work with residents and an HVAC company to ensure equipment outside or on the roof does not disturb residents.

12. The Voyage (Irish Northwest LLC), 205 E 4th St (op) (irish pub)

VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To—Stipulations Attached

WHEREAS, Irish Northwest LLC doing business as The Voyage is seeking a full on-premises liquor license, in the premises located at 205 E. 4th Street between Avenue A and Avenue B, New York, New York; and

WHEREAS, this is an application for an establishment with of 74 people, 7 tables and 60 seats with a stand up bar with 12 seats, full kitchen serving food during all hours of operation. DESCRIBE TELEVISIONS, and

WHEREAS, there are 13 full on-premises liquor licenses within 500 feet per the SLA LAMP map; and

WHEREAS, this location was previously the Cabin with a full liquor license, at this location for approximately 8 years, and

WHEREAS, the applicant has never previously been a license but have worked in the hospitality industry for many years, including several bars and restaurants in New York City; and

WHEREAS, there were 12 commercial 311 complaints at this location with NYPD action necessary since 2020; and

WHEREAS, we received 5 emails in opposition to this item due to the problematic history of the last business, they used the back yard, had live music, stayed open past their approved hours and did not adhere to their agreed upon stipulations, there were crowds and noise on the street, they did not install adequate soundproofing and noise could be heard in nearby apartments; and

WHEREAS, 68 residents who live within two blocks of the location signed a petition in favor of the application; and

WHEREAS, the applicant's assured the committee that they would work with the neighbors, they do not intend on using the outdoor space at all, including the backyard, the sidewalk or roadbed, they want to have reasonable hours, and only background level music, they will work with an HVAC repair company to address the noise from the ZHVAC equipment on the roof; and

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a full on-premises liquor license for Irish Northwest LLC, for the premises located at 205 E. 4th Street , New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a Bar Tavern, specifically a Gaston Pub with full kitchen serving food during all hours of operation,
2) its hours of operation will be opening no later than 3PM and closing by 12AM Monday – Wednesday , 3PM – 1AM Thursday, 3PM –2AM Friday, 11AM – 2AM Saturday, 11am – 12am Sunday,
3) it will have security on Thursdays, Fridays, and Saturdays,
4) it will install soundproofing to ensure sound is not audible in neighboring apartments,
5) it will not use outdoor space for commercial use.
6) it will close any front or rear facade doors and windows at 10:00 P.M. every night or when amplified sound is playing, including but not limited to DJs, live music and live non-musical performances, or during unamplified live performances or televised sports ,
7) it will play ambient background music only, consisting of recorded music, and will not have live music, DJs, promoted events, scheduled performances, dancing, or any event at which a cover fee will be charged,
8) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
9) it will not host pub crawls or party buses,
10) it will not have unlimited drink specials, including boozy brunches, with food,
11) it may have "happy hours" until 7P each night
12) it will ensure that there are no wait lines outside and will designate an employee for ensuring no loitering, noise or crowds outside,
13) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
14) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints
15) it will work with residents and an HVAC company to ensure HVAC outside or on the roof does not disturb residents.

13. Foodie BBQ (Foodie BBQ LLC), 300 Grand St (wb) (restaurant)

VOTE: TITLE: Community Board 3 Recommendation To Deny Unless Stipulations Agreed To— Stipulations Attached

WHEREAS, Foodie BBQ, LLC doing business as "Foodie BBQ", is seeking wine, beer, and cider license in the premises located at 300 Grand Street, between Eldridge and Allen Streets, New York, New York; and

WHEREAS, this is an application for an establishment with up to 74 people, with 15 tables and 28 seats, with a full kitchen and food preparation area, serving food during all hours of operation, one (1) television, and small speakers playing ambient background music; and

WHEREAS, there are 22 full on-premises liquor licenses within 500 feet per the SLA LAMP map; and

WHEREAS, this is a previously unlicensed location; and

WHEREAS, applicant has owned and operated this restaurant at this location since 2025, but has never held a license for the sale of alcohol; and

WHEREAS, since 2020, there have been three (3) commercial noise 311 complaints where police action was necessary; and [Note: there were an additional four (4) complaints with no police action];

WHEREAS, 11 residents who live within two blocks of the location signed a petition in favor of the application; and

WHEREAS, although this is an unlicensed location, the applicant is asking for a Beer/Wine license, in a commercial section of Grand Street, with no residential apartments in the immediate adjacent area, granting of this license should not increase the impact on the neighborhood,

THEREFORE, BE IT RESOLVED that Community Board 3 recommends the denial of the application for a Beer, Wine and Cider license for Foodie BBQ, LLC, for the premises located at 300 Grand Street, New York, New York, unless the applicant agrees to the following signed notarized stipulations that

1) it will operate as a Chinese BBQ Restaurant, with a full kitchen and food preparation area serving food during all hours of operation,
2) its hours of operation will be opening no later than 12PM and closing by 2AM ALL DAYS,
3) it will not use outdoor space for commercial use,
4) it will have a closed fixed façade with no open doors or windows except my entrance door will close by 10:00 P.M. or when amplified sound is playing, including but not limited to DJs, live music and live nonmusical performances, or during unamplified live performances or televised sports,
5) it will play ambient background music only, consisting of recorded music, and will not have live music, DJs, promoted events, scheduled performances, dancing, or any event at which a cover fee will be charged,
6) it will not apply for any alteration in its method of operation or for any physical alterations without first appearing before Community Board 3,
7) it will not host pub crawls or party buses,
8) it will not have unlimited drink specials, including boozy brunches, with food,
9) it will not have "happy hours,"
10) it will ensure that there are no wait lines outside and will designate an employee for ensuring no loitering, noise or crowds outside,
11) it will conspicuously post this stipulation form beside its liquor license inside of its business, and
12) it will provide a telephone number for residents to call with complaints and immediately address any resident complaints.

<u>Items not heard at Committee</u>

14. Rumpus Room (Saff, Inc), 249 Eldridge St (op/corp change)
    administratively approved
15. Cibao Restaurant NY Corp, 72 Clinton St (wb) (restaurant)
    withdrawn
16. Ninetyninesecond LLC, 99 2nd Ave (op) (restaurant)
    administratively approved
17. Ramen Break Beats NYC LLC, 177 Ludlow St (wb) (restaurant)
    withdrawn
18. Visit Sicily Restaurant (Sicily Street Food Inc), 214 E 9th St (op) (restaurant)
    administratively approved
19. Aesthetic Matters LLC, 235 Bowery (op/alt: adding entire museum to license to facilitate alcohol service in private events throughout the museum and adding an additional bar for cafe/private events service) (restaurant)
    administratively approved
20. Not As Bitter LLC, 241 E 10th St (op) (bar/tavern)
    administratively approved
21. Sushibym2 Inc, 300 E 5th St (wb) (restaurant)
    administratively approved

<u>Dining Out NYC - Not heard at Committee</u>

22. Café Mogador (Rivka Inc), 101 St Mark's Pl (RWC)
    administratively approved
23. Craft + Carry (CC 116 Corp), 116 St Mark's Pl (RWC)
    administratively approved
24. Ariari (Ariari NYC LLC), 119 1st Ave (RWC)
    administratively approved

<u>Municipal Space Expansion - Not heard at Committee</u>

25. Virginia's (Oyster City LLC), 200 E 3rd St (RWC & SWC)
    administratively approved
26. Augur's Well (BAC 115 Corp), 115 St Mark's Pl (RWC)
    administratively approved
27. Jackdaw (Host 213 LLC), 213 2nd Avenue (SWC)

administratively approved

28. The River (Bar Clark LLC), 102 Bayard St (SWC)
administratively approved

29. Vote to adjourn
approved by committee

40 YES 0 NO 0 ABS 0 PNV MOTION PASSED

Land Use, Zoning, Public & Private Housing Committee

1. Approval of previous month's minutes
approved by committee
2. FY28 District Needs Statement and Budget Requests
VOTE: To approve the FY'28 District Needs Statement and Budget Priorities
3. Introduction to Development Team for 324 E 5th St affordable housing
no vote necessary
4. Special permit for hotel at 23-27 Allen Street: new 9-story, 40-unit hotel with ground floor retail
no vote necessary
5. Vote to adjourn
approved by committee

40 YES 0 NO 0 ABS 0 PNV MOTION PASSED

Transportation, Public Safety, Sanitation & Environment Committee

1. Approval of previous month's m1inutes
approved by committee
2. FY28 District Needs Statement and Budget Priorities
VOTE: To approve the FY'28 District Needs Statement and Budget Priorities
3. EDC: Update and request for support for progress of welcome gateway design for Chinatown Connections
no vote necessary
4. DOT: Update on Manhattan Bridge off ramp accident
no vote necessary
5. Support for Phasing Out Truck Side Guard Exemptions in New York City
VOTE: TITLE: Phasing out Truck Side Guard Exemptions in New York City

WHEREAS, as part of New York City's Vision Zero initiative, the New York City Council enacted Local Law 56 of 2015, requiring side guards on large vehicles in the City fleet to reduce the risk of pedestrians and cyclists being pulled beneath trucks during side-impact crashes;

WHEREAS, Local Law 108 of 2021 expanded side guard requirements to include many City-contracted vehicles operating on New York City streets, recognizing side guards as a proven safety measure that can prevent fatalities and serious injuries involving vulnerable road users;

WHEREAS, New York City Administrative Code §16-526 and related rules of the Business Integrity Commission require trade waste hauling vehicles over 10,000 pounds operating in New York City to be equipped with side guards, with compliance required beginning January 1, 2023;

WHEREAS, the Business Integrity Commission currently administers a waiver process for vehicles where side guard installation is deemed impractical, creating exemptions to a safety requirement intended to protect pedestrians and cyclists from severe injury and death;

WHEREAS, side guards are widely recognized as an effective engineering control that helps prevent pedestrians and bicyclists from falling into the exposed space between a truck's front and rear axles during a collision;

WHEREAS, on September 18, 2026, a 15-year-old girl, Daria Serkov, was fatally struck and another teenager was seriously injured following a collision involving a large commercial truck at East 14th Street and First Avenue in Manhattan, highlighting the continued dangers posed by heavy vehicles operating on New York City streets and the importance of proven safety measures that reduce the risk of vulnerable road users being pulled underneath trucks;

THEREFORE, BE IT RESOLVED, that Community Board 3 calls upon the New York City Council and the Business Integrity Commission to immediately review all current side guard waivers,

revoke exemptions that are no longer demonstrably necessary, require operators to pursue available retrofit solutions, and establish a timetable for the complete phase-out of design-based exemptions in furtherance of Vision Zero and the protection of New York City's pedestrians and cyclists.

6. Feedback on Public Modular Restroom Pilot Program

VOTE: TITLE: Public Modular Restroom Pilot Program

WHEREAS, on September 16, 2026, the City of New York announced the installation of 17 new modular public bathrooms across the five boroughs as part of a $4 million pilot program intended to provide free and accessible restroom facilities in public plazas and other high-traffic areas where reliable bathroom access is limited; and

WHEREAS, the one-year pilot is being implemented through the New York City Economic Development Corporation (NYCEDC), which selected Throne Labs through a competitive bidding process to deliver, operate, and service the modular bathrooms; and

WHEREAS, the New York City Department of Transportation (NYC DOT) will manage the one-year pilot program; and

WHEREAS, two of the announced restroom locations are within Manhattan Community District 3, at Cooper Square and the south side of Delancey Street at Suffolk Street; and

WHEREAS, each restroom will be free and open daily from 7:00 A.M. to 10:00 P.M., and the ADA-accessible, fully touchless units will include a running-water sink, flushing toilet, climate control, and baby-changing station; and

WHEREAS, the modular units are self-contained and do not require connections to water, sewer, or power infrastructure, allowing them to be deployed, relocated, or removed as community needs change; and

WHEREAS, Throne Labs will be responsible for cleaning and maintaining the units, with real-time user feedback intended to help identify and prioritize units requiring attention; and

WHEREAS, users will be able to access the restrooms by text message, QR code, the Throne Bathroom Network app, or a tap card distributed through local community partners, and the app will provide information about restroom availability and cleanliness; and

WHEREAS, NYC DOT stated that it partnered with NYC Parks to help identify restroom locations in high-traffic areas across the five boroughs; and

WHEREAS, Manhattan Community Board 3 recognizes that reliable access to clean, safe, free, and accessible public restrooms is an important component in heavily used pedestrian areas and public spaces; and

WHEREAS, concerns have been raised over the proposed hours and the feasibility of obtaining a physical tap card, particularly for vulnerable populations who stand to benefit the most from the pilot program.

THEREFORE BE IT RESOLVED, Manhattan Community Board 3 enthusiastically supports the City's one-year modular public bathroom pilot and the installation of new public restrooms within Community District 3 and calls for any Throne restroom program to address the following before final implementation*:*

- Establish sustainable operating hours and track restroom closures and service interruptions.
- Ensure access without a phone or tap card, with clear guidance for lost or discarded cards and easily accessible local partners providing cards and program information.
- Create local jobs to operate, clean, service, and maintain the units.
- Assess whether the 10-minute limit accommodates older adults and people with disabilities or mobility limitations, including options for additional time and emergency assistance.
- Provide instructions, accessibility and audio warnings, information in Chinese (multiple dialects), English, and Spanish, and monitor the availability and effectiveness of alternative access methods.

THEREFORE BE IT FURTHER RESOLVED, CB3 requests that NYC DOT return to Community Board 3 during the pilot period, within a reasonable timeframe after sufficient data have been collected, to share information regarding usage, operational and maintenance issues, user feedback, accessibility, safety, and lessons learned.
Source: Mayor Mamdani Brings 17 New Public Bathrooms to Neighborhoods Across New York City, NYC Mayor's Office, September 16, 2026.

7. Vote to adjourn
   approved by committee

40 YES 0 NO 0 ABS 0 PNV MOTION PASSED

Parks, Recreation, Waterfront, & Resiliency Committee

1. Approval of previous month's minutes
   approval deferred until the November 2026 committee meeting
2. Parks Manager Update
   no vote necessary
3. FY28 District Needs Statement and Budget Priorities
   VOTE: To approve the FY'28 District Needs Statement and Budget Priorities
4. Parks: Presentation of 3 options for the reconstruction of the Tompkins Square Park Mini-Pool, Basketball Courts and fitness area
   VOTE: TITLE: Support for Option 1 of the Tompkins Square Park Mini-Pool, Basketball Courts and Adult Fitness Area Reconstruction

WHEREAS, Tompkins Square Park is an essential public recreational resource serving the East Village and surrounding communities, providing free opportunities for swimming, basketball, outdoor fitness and community gathering for residents of all ages, backgrounds and abilities; and

WHEREAS, NYC Parks presented three approaches to reconstructing the mini-pool, basketball courts and adult fitness area, with a total project budget of approximately $9.93 million, including $6.1 million through the New York State NY SWIMS program and $3.83 million in City funding; and

WHEREAS, the existing mini-pool suffers from deteriorating infrastructure, including a leaking pool structure, outdated filtration equipment and aging deck surfaces, and its replacement will provide a new, larger and more accessible in-ground swimming pool capable of accommodating approximately 66 swimmers, compared with the existing capacity of 33; and

WHEREAS, the mini-pool provides an important recreational environment specifically for children, particularly those from families who rely on free public swimming facilities, and opportunities to develop swimming skills and water safety awareness are critical to preventing drowning and saving lives; and

WHEREAS, while the existing fitness area can be accessed from several park entrances and pathways, circulation within the exercise area and the accessibility of certain equipment present limitations for individuals with disabilities or limited mobility; and the proposed reconstruction would improve internal circulation, provide more inclusive exercise equipment and create a fully accessible in-ground swimming pool; and

WHEREAS, the existing basketball courts and calisthenics facilities are heavily utilized community resources that support physical activity, social interaction and multigenerational recreation, and their importance to regular users must be recognized as the project advances; and

WHEREAS, NYC Parks confirmed that detailed 3D scans were conducted to document the dimensions and configurations of the existing calisthenics equipment and stated that the three principal exercise structures would be faithfully recreated, together with additional equipment and necessary safety and accessibility improvements; and

WHEREAS, community members expressed concerns regarding the proposed replacement of familiar fitness equipment, its functionality, durability and quality, the preservation of half-court basketball opportunities, and the potential disruption of established recreational activities; and

WHEREAS, basketball court users and committee members raised concerns regarding court lighting, protective padding, seating arrangements, fencing heights and other safety and maintenance issues, while committee members also questioned the proposed reduction of fencing heights elsewhere in the project area; and

WHEREAS, the committee received substantial public testimony expressing differing views regarding the proposed reconstruction, including opposition to replacing existing facilities, concern over prolonged closures and requests to preserve the unique recreational and social functions of the existing basketball and calisthenics areas; and

WHEREAS, CB3 recognizes these concerns while also acknowledging the need to replace deteriorating infrastructure, correct longstanding drainage and accessibility deficiencies, and provide modernized recreational facilities for current and future generations; and

WHEREAS, NYC Parks advised that the project includes underground stormwater detention tanks beneath the basketball courts to temporarily retain runoff during heavy rainfall and release it gradually into the sewer system, with the intended benefit of helping address localized flooding and ponding conditions in the surrounding area, including reported problems along East Eighth and Ninth Streets and at East Tenth Street and Avenue B; and

WHEREAS, NYC Parks further explained that previous basketball court improvements were largely surface renovations, while underlying infrastructure conditions and the need to install stormwater detention tanks necessitate more comprehensive reconstruction; and

WHEREAS, community members and committee members raised concerns regarding proposed tree removals, particularly healthy and mature trees, and emphasized the importance of protecting the park's established canopy, enhancing greenery and ensuring appropriate long-term landscape maintenance; and

WHEREAS, Option 1 provides comprehensive reconstruction over an estimated 18-month construction period, during which the mini-pool, basketball courts and adult fitness area would be closed, creating a significant temporary disruption for neighborhood residents and regular recreational users; and

WHEREAS, deteriorating pathways throughout Tompkins Square Park remain a longstanding public safety and accessibility concern, and NYC Parks advised that approximately $1.1 million has been allocated toward pathway improvements, while substantially more funding will be required to address the broader reconstruction needs; and

WHEREAS, following the October 15, 2026 presentation, public testimony and committee discussion, the Parks, Recreation, Waterfront & Resiliency Committee voted to recommend Option 1, with the design modifications and additional considerations outlined below;

THEREFORE, BE IT RESOLVED, that Manhattan Community Board 3 supports Option 1, the comprehensive reconstruction of the Tompkins Square Park mini-pool, basketball courts and adult fitness area, and requests that NYC Parks incorporate or give further consideration to the following recommendations as the design advances:

1. Preservation and Replication of Fitness Equipment

CB3 strongly requests that NYC Parks fulfill its stated intention to faithfully recreate the three principal existing calisthenics structures using the completed 3D scans to preserve their essential dimensions, configurations, functionality and versatility.

Replacement equipment should retain the range of traditional calisthenics exercises supported by the existing structures, including appropriate pull-up bars, parallel bars and other exercise components, while incorporating necessary safety clearances and accessibility improvements.

The committee further requests that Parks use durable, high-quality materials and construction methods suitable for intensive public use and continue consulting with existing fitness-area users regarding final equipment specifications.

2. Fencing Throughout the Project Area

CB3 strongly requests that NYC Parks maintain appropriate fencing heights throughout the reconstructed area and not reduce fencing to four feet along the principal boundaries of the recreational facilities, particularly around the basketball courts and other locations where safety, security or the containment of basketballs is a concern.

The committee supports maintaining taller fencing, including heights of up to eight feet where appropriate, and retaining the proposed eight-foot pool enclosure. Lower fencing may be appropriate for certain interior sections where it does not compromise safety, security or recreational use.

The committee emphasizes that adequate fencing is important not only for preventing errant basketballs from entering surrounding pedestrian areas, planting beds, the pool vicinity and East 10th Street, but also for maintaining appropriate separation between recreational uses and discouraging unauthorized access.

3. Basketball Courts and Recreational Opportunities

CB3 requests that NYC Parks give serious consideration to incorporating at least one dedicated half-court or practice basketball area into the final design, recognizing the importance of these facilities for children, younger and less experienced players, and others who may have difficulty obtaining playing time on full-size courts.

Parks should examine feasible locations, including areas near the existing handball courts, while avoiding unnecessary displacement of other established recreational uses.

The committee further recommends:

- Providing improved basketball court lighting appropriate for safe use during permitted operating hours.
- Incorporating protective padding on basketball supports and other equipment where appropriate to reduce the potential for injury.
- Modifying the proposed seating arrangements between basketball courts so benches and spectator areas do not interfere with play or create unnecessary safety hazards.
- Ensuring durable basketball equipment and appropriate ongoing maintenance.

4. Swimming Pool Seating

CB3 requests that the reconstructed pool area provide movable, upright seating for parents, caregivers and other pool users, rather than permanent lounge-style seating.

Seating should offer flexibility, maintain clear sightlines throughout the pool area, facilitate appropriate supervision of children and preserve safe circulation and accessible routes around the pool deck.

5. Drinking Fountains and Bottle-Filling Stations

CB3 requests that NYC Parks provide sufficient, conveniently located drinking fountains and bottle-filling stations to serve the reconstructed pool, basketball courts and fitness area.

The committee further requests that Parks coordinate these improvements with the repair or replacement of nearby nonfunctioning drinking fountains.

6. Tree Preservation

CB3 strongly requests that NYC Parks make every reasonable effort to preserve existing healthy trees, particularly mature canopy trees, and reconsider proposed design-related removals wherever feasible.

Where trees are affected by the proposed pool, new stairs, accessible entrance or other construction elements, Parks should consider reasonable design adjustments that could preserve those trees without compromising essential safety, accessibility or project requirements.

Unavoidable removals should be minimized and accompanied by appropriate replacement planting, with tree protection measures incorporated throughout construction.

7. Planting and Landscaping

CB3 requests that NYC Parks incorporate a balanced planting palette emphasizing year-round greenery, appropriate shade and visual continuity with the surrounding park.

Planting areas should provide suitable growing conditions and account for long-term maintenance, stormwater management and pest mitigation.

8. Drainage and Stormwater Resiliency

CB3 supports the inclusion of underground stormwater detention tanks beneath the basketball courts as an important environmental and resiliency improvement.

The committee requests that the reconstruction fully address deteriorated drainage infrastructure within the project area, ensure the long-term functionality and maintenance of the new stormwater detention system, and coordinate improvements with existing drainage problems affecting adjacent park areas, including the Slocum Memorial area.

9. Parks Maintenance Storage

CB3 requests that NYC Parks provide an appropriate replacement location or arrangement for the gardening and maintenance equipment currently stored within the project area and displaced by the proposed reconstruction.

Adequate storage should be maintained to support the continued operation and maintenance of Tompkins Square Park.

10. Construction Impacts and Alternative Recreational Opportunities

Recognizing that Option 1 requires closure of the mini-pool, basketball courts and fitness area for an estimated 18 months, CB3 requests that NYC Parks make every reasonable effort to minimize construction disruptions and avoid unnecessary delays.

Parks should clearly communicate anticipated closure dates, construction milestones and changes in access, while maintaining safe and accessible pedestrian circulation outside the construction area.

The committee further requests that Parks identify and publicize nearby alternative basketball courts, outdoor fitness facilities and swimming opportunities during construction, recognizing that the practical availability and capacity of these alternatives may vary.

BE IT FURTHER RESOLVED, that CB3 strongly urges NYC Parks and the appropriate elected officials to prioritize and secure the additional funding necessary to reconstruct deteriorating pathways throughout Tompkins Square Park, recognizing that their existing conditions present serious public safety and accessibility concerns beyond the scope of the proposed mini-pool reconstruction; and

BE IT FURTHER RESOLVED, that CB3 requests clarification regarding available pathway funding, additional capital needs and the anticipated reconstruction schedule, and urges that future landscaping, drainage and green infrastructure improvements be coordinated with necessary pathway repairs; and

BE IT FURTHER RESOLVED, that NYC Parks continue meaningful consultation with CB3, surrounding residents and existing recreational users and return to the committee with updated design information demonstrating how the requested modifications have been addressed before the project advances to final design.

TO REFER BACK TO COMMITTEE.

5. DDC: ESCR / BMCR Update
   no vote necessary

6. Gotham Park: Presentation on Fall Programs
   no vote necessary
7. Vote to adjourn
   approved by committee

40 YES 0 NO 0 ABS 0 PNV MOTION PASSED

By-Laws Task Force

- Proposed By-Law Revisions

VOTE: To approve the proposed By-Law revisions.

Proposed changes to Section H

If a Board Member is absent from more than one-third of their meeting obligations during a six-month period, the Board Chairperson shall propose that the Executive Committee take action. The Executive Committee shall decide that a letter will be sent either electronically or by regular mail within two weeks of the Executive Committee meeting to the Board Member advising the Board Member of their substantial lack of attendance. If a Board Member receives a letter after the six-month period, they shall be requested to attend the next Executive Committee meeting to review their attendance. A copy of the letter will be sent to the elected official who recommended the Board Member and to the Borough President.

If the letter is sent, and if during the next three months the Board Member continues to be absent from more than one-third of their meeting obligations, the Board Chairperson shall recommend the Board Member's removal to the Executive Committee. The Executive Committee shall then determine whether to recommend removal. There shall be two periods for measurement of attendance each year (April to September and October to March). If a determination letter has been sent within the previous two years, the additional three-month period is waived and the Board Chairperson shall recommend removal to the Executive Committee. If the Executive Committee passes a resolution to remove the Board Member, then the resolution shall be presented at the next Board meeting.

If the Full Board votes in favor of removal, the Board Member shall be deemed removed, immediately after the vote. The Board chairperson shall notify the elected official who appointed the Board Member and the Borough President of the removal of the Board Member with a request to appoint a person to fill the remainder of the term.

Proposed Change to Section I

I. Procedures for Removal or Reprimand of a Board Member for Cause

The Board may, by a majority vote at a regular meeting reprimand or remove a Board Member for cause.

1. A Board Member may be reprimanded or removed for cause for any of the following reasons:

a. A felony conviction during the Board Member's term of service on the Board.

b. Soliciting, receiving, or accepting any remuneration in exchange for a vote on any item under consideration by the Board or any of its primary committees, secondary committee, or task forces if there is a Department of Investigation or Conflicts of Interest Board determination that a Board Member had solicited, received, or accepted remuneration.

c. Failure to declare a conflict of interest based on a Department of Investigation or Conflict of Interest Board determination.

e. Any form of Board representation not authorized by the Chairperson.

f. Demonstrating behavior unbecoming a Board Member, including but not limited to disruptive, demeaning, abusive or violent behavior.

Proposed Changes to Section VI

VI. Public Members

A. Members of the public may be appointed by the Board Chairperson to serve on primary committees, secondary committees, and task forces.

B. Public members of primary committees, subcommittees and task forces may vote upon items before the committees, secondary committees, and task forces but may not vote at the Full Board meeting.

C. The term of every public member shall be for one year ending on June 30th of each year but may be extended at the discretion of the Board Chair.

D. Public members may be reappointed by the Board Chair after applying for reappointment by completing an application.

E. Any public member may be removed from a primary committee, secondary committee, or task force by the Board Chair if the public member is absent from two consecutive meetings. The public member will be notified of removal in writing either electronically or by regular mail.

F. Public members must abide by all conflict of interest and open meeting laws that apply to Board Members.

40 YES 0 NO 0 ABS 0 PNV MOTION PASSED